

GORSUCH, J., dissenting

tional Prohibition Act. The defendants argued that they had already been prosecuted by the State of Washington for the same offense. But, notably, the defendants did not directly question the permissibility of successive prosecutions for the same offense under state and federal law. Instead, the defendants argued that both of the laws under which they were punished really derived from the “same sovereign:” the national government, by way of the Eighteenth Amendment that authorized Prohibition. After rejecting that argument as an “erroneous view of the matter,” the Court proceeded on, perhaps unnecessarily, to offer its view that “an act denounced as a crime by both national and state sovereignties is an offense against the peace and dignity of both and may be punished by each.”⁸⁷ Given that the Court was not asked directly to consider the propriety of successive prosecutions under separate state and federal laws for the same offense, it is perhaps unsurprising the Court did not consult the original meaning of the Double Jeopardy Clause or consult virtually any of the relevant historical sources before offering its dictum.

It matters, too, that these cases “were decided by the narrowest of margins, over spirited dissents challenging the basic underpinnings of those decisions.”⁸⁸ In *Moore*, Justice McLean wrote that although “the Federal and State Governments emanate from different sovereignties,” they “operate upon the same people, and should have the same end in view.”⁸⁹ He “deeply regret[ted] that our government should be an exception to a great principle of action, sanctioned by humanity and justice.”⁹⁰ *Bartkus* and *Abbate*, cases decided in the 1950s that more clearly approved the separate sovereigns exception, were decided only by 5-to-4 and 6-to-3 margins, and Justice Black’s eloquent dissents in

⁸⁷ *Id.*, at 381, 382.

⁸⁸ *Payne v. Tennessee*, 501 U. S. 808, 828–829 (1991).

⁸⁹ 14 How., at 22 (dissenting opinion).

⁹⁰ *Ibid.*